

FILED

2008 MAY 29 AM 11:14

KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA

Superior Court of Washington
County of King

In re the Custody of:

TIMOTHY E. BENNETT, II

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACKARIAH J. BENNETT and KELLY J.
BENNETT,

Respondents.

No. 08-3-03956-4 SEA

DECLARATION OF PETITIONER IN
SUPPORT OF TEMPORARY
CUSTODY OF TIMOTHY E.
BENNETT, II, a minor child.

I, Melvina Roberson, state under penalty of perjury under the laws of the State of Washington that:

1. I am the petitioner above named, over the age of 18 years, and competent to testify herein.

2. I am the mother of Respondent Zackariah J. Bennett and the paternal grandmother of Timothy E. Bennett, II, age 16 months.

3. Timothy has been residing with me since March 5, 2008 at my home in King County, Washington. Timothy's parents have both given written consent that Timothy reside with me and a copy of their consent is attached hereto.

4. Others living with me include my long-time boyfriend John Manning, age 44, John's son Adam Manning, age 19, and Timothy's mother Kelly J. Bennett, age 22.

DECL. OF PETITIONER IN SUPPORT OF TEMP.
CUSTODY OF TIMOTHY E. BENNETT, II, a minor child.
Page 1 of 3 a-3

ORIGINAL

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

5. The reason that Timothy has come to live with me is because his parent's are both chronic drug users and his father, Respondent Zackariah J. Bennett has a long criminal history and a long history of increasingly severe domestic violence. At the time Timothy came to live with me it was because his parents feared he would be taken from them by Colorado CPS and because both parents recognized they were unable to physically and emotionally give Timothy proper care. Timothy's mother Kelly has given a detailed description of the parent's history of drug use and domestic violence.

6. The day after Timothy came to live with me I received a telephone call from Colorado CPS seeking to confirm that I had physical custody of Timothy. I confirmed that Timothy was with me in King County, Washington. Within hours of that telephone call, Carnation police visited my home to confirm that Timothy was with me.

7. My reason for seeking custody of Timothy is my belief that his parents are not emotionally or physically able to give him the healthy, supporting and loving environment he needs and deserves. Hopefully, someday either or both parents will be able to properly care for Timothy. But until that day, Timothy needs more than either parent can provide.

8. On March 5, 2008 I brought Timothy back to Washington with me after going to Colorado to visit him and his parents. The conditions in Colorado were awful. The home was cramped and dirty. Timothy was left confined in a small room for long periods while the parents slept, watched TV, did drugs, or played video games in another room. There was little or no proper food for Timothy nor any clean clothes.

9. Prior to my arrival in Colorado, there had apparently been some contact with the parents from CPS, the particulars of which I'm unfamiliar with. But whatever it was, Timothy's parent's feared CPS would take Timothy away. They asked me to take him to Washington and I was only too happy to get my grandson out of that environment.

10. My son Zackariah is violent. Though he asked me to take Timothy to Washington with me, I fear he will change his mind and come to Washington. Zackariah is a heavy drug user and I fear for my safety and for Timothy if Zackariah come to Washington.

DECL. OF PETITIONER IN SUPPORT OF TEMP.
CUSTODY OF TIMOTHY E. BENNETT, II, a minor child.
Page 2 of 3 a-3

11. Timothy's parents used to live in Washington until shortly before his birth. His mother Kelly has also moved to Washington and is temporarily living with me until she can get into drug rehab and find stable employment. She joins in my request to obtain temporary legal custody of Timothy.

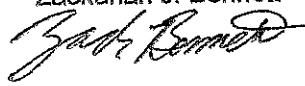
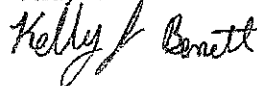
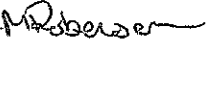
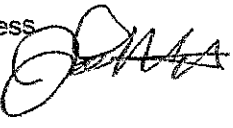
12. I am a fit and proper person to have the care, custody and control of my grandson. I have a stable home, a stable job and no history of any criminal activity. I am almost 49 years old and in good health. I am in close contact with Timothy's maternal grandparents who live in Colorado and they support my having temporary custody of Timothy.

DATED this 28th day of May, 2008.

Melvina Roberson
MELVINA ROBERSON

03/05/08
25

We, Zackariah J. Bennett and Kelly J. Bennett, do give Melvina Roberson (maiden Smith) temporary custody of Timothy E. Bennett II until such time we either move to WA or decide to take custody back. We authorize Melvina to obtain any treatment and make any decisions necessary for the mental and physical health of Timothy.

Zackariah J. Bennett	Kelly J. Bennett	Witness	Witness
			

we can be reached @ 509 391-5651²⁵
or 303 859-8059